

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 9, 2026
8:30 a.m./1:30 p.m.

8. JONATHAN PEARCE V. ELIZABETH MONROE

24FL0151

On April 13, 2026, Petitioner filed a Request for Order (RFO) seeking property orders regarding the marital residence and sanctions. He filed a Memorandum of Points and Authorities and a Declaration of Attorney Amber White concurrently with the RFO. All required documents were served by mail on April 16, 2026.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Respondent. She had notice of the pending requests and chose not to file an opposition. As such, the court finds good cause to treat her failure to do so as an admission that the claims made in the RFO are meritorious.

Judgment in this matter was entered on June 12, 2026. As part of the Judgment, the court made orders regarding the marital residence located at 10180 Rock Creek Road. The court retained jurisdiction over the home until sold and the proceeds distributed in accordance with the terms of the Judgment.

Petitioner requests the following orders: (1) Respondent to vacate the marital residence within 2 weeks of the hearing; (2) Petitioner to be given permission to dispose of the items remaining after Respondent vacates; (3) Petitioner be given sole control over the sale of the marital residence; (4) The court clerk to be appointed to sign as elisor on behalf of Respondent for all documents related to the sale of the home; (5) Petitioner to be reimbursed for the mortgage payments for each month from November 1, 2025 through the date of the sale; and (6) Sanctions in the amount of \$5,000 pursuant to Family Code § 271.

Petitioner’s requests are granted in part. Respondent is ordered to vacate the residence no later than August 6, 2026. For any personal property of Respondent that is left at the residence, Petitioner is to provide Respondent with written notice of the remaining property and the deadline to pick up the items. Respondent shall have 14 days from the date of the notice to pick up any of her property; if she has not done so by that date then Petitioner may dispose of the property. Petitioner is granted sole control over the sale of the marital residence. Regarding reimbursement for the mortgage payments, Respondent is ordered to reimburse Petitioner for one-half of each of the mortgage payments from November 1, 2025 through the date of the sale of the home.

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Turning to the request that the clerk be empowered to act as elisor, the court's authority to appoint elisors is statutory in nature. Code of Civil Procedure section 128 outlines the powers a court has to conduct proceedings, including the power to "compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending." CCP § 128(4).

While the court does have authority to appoint the clerk to act as elisor, the court is reticent to do so without knowing exactly what documents would need to be signed and the contents thereof. The request is therefore, denied without prejudice. In the event Respondent refuses to sign documents related to the sale Petitioner may file another RFO with the court.

Finally, Petitioner has made a request for sanctions pursuant to Family Code Section 271 which states in pertinent part, "...the court may base an award of attorney's fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties..." Fam. Code § 271(a). While the purpose of Section 271 is to impose a punitive sanction, the court is not to impose a sanction that would create an "unreasonable financial burden on the party against whom the sanction is imposed." *Id.*

Here, the court does find that Respondent acted in a manner that frustrates the policy of the law which is to reduce the cost of litigation and cooperate with one another. That said, the court is concerned that the requested \$5,000 would create an unreasonable financial burden on Respondent. As such, the court is awarding Petitioner \$2,000 as and for sanctions pursuant to Family Code § 271. This amount is to be paid out of Respondent's proceeds from the sale of the home.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #8: PETITIONER'S REQUESTS ARE GRANTED IN PART. RESPONDENT IS ORDERED TO VACATE THE RESIDENCE NO LATER THAN AUGUST 6, 2026. FOR ANY PERSONAL PROPERTY OF RESPONDENT THAT IS LEFT AT THE RESIDENCE, PETITIONER IS TO PROVIDE RESPONDENT WITH WRITTEN NOTICE OF THE REMAINING PROPERTY AND THE DEADLINE TO PICK UP THE ITEMS. RESPONDENT SHALL HAVE 14 DAYS FROM THE DATE OF THE NOTICE TO PICK UP ANY OF HER

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PROPERTY, IF SHE HAS NOT DONE SO BY THAT DATE THEN PETITIONER MAY DISPOSE OF THE PROPERTY. PETITIONER IS GRANTED SOLE CONTROL OVER THE SALE OF THE MARITAL RESIDENCE. REGARDING REIMBURSEMENT FOR THE MORTGAGE PAYMENTS, RESPONDENT IS ORDERED TO REIMBURSE PETITIONER FOR ONE-HALF OF EACH OF THE MORTGAGE PAYMENTS FROM NOVEMBER 1, 2025 THROUGH THE DATE OF THE SALE OF THE HOME.

THE REQUEST TO APPOINT THE CLERK AS ELISOR IS DENIED WITHOUT PREJUDICE. IN THE EVENT RESPONDENT REFUSES TO SIGN DOCUMENTS RELATED TO THE SALE, PETITIONER MAY FILE ANOTHER RFO WITH THE COURT.

THE COURT IS AWARDING PETITIONER \$2,000 AS AND FOR SANCTIONS PURSUANT TO FAMILY CODE § 271. THIS AMOUNT IS TO BE PAID OUT OF RESPONDENT'S PROCEEDS FROM THE SALE OF THE HOME.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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9. ESTEFANIA SIMMONS V. RONALD SIMMONS

25FL0176

On April 23, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders as well as support orders and a motion to compel. There is no Proof of Service for this document or any of the other required documents; as such, this matter is dropped from calendar due to lack of proper service.

TENTATIVE RULING #9: THIS MATTER IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.